

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

FIFTH SECTION

CASE OF VARZHABETYAN AND OTHERS v. RUSSIA

(Applications nos. 60851/12 and 15 others –
see appended list)

JUDGMENT

STRASBOURG

5 October 2023

This judgment is final but it may be subject to editorial revision.



In the case of Varzhabetyan and Others v. Russia,

The European Court of Human Rights (Fifth Section), sitting as a Committee composed of:

María Elósegui*, President*,
Mattias Guyomar,
Kateřina Šimáčková*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 14 September 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the torture or inhuman or degrading treatment. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 3 OF THE CONVENTION

7. The applicants complained principally of the torture or inhuman or degrading treatment. They relied, expressly or in substance, on Article 3 of the Convention.

8. The Court held in *Bouyid v. Belgium* ([GC], no. 23380/09, §§ 81-90 and 114-23, ECHR 2015), that presumptions of fact was in favour of applicants claiming to be victims of a violation of Article 3 of the Convention, if they demonstrate that the alleged ill-treatment was inflicted when they were under the control of the police or a similar authority. Moreover, in the context of detainees, the Court has emphasised that persons in detention are in a vulnerable position and that the authorities have a duty to protect their physical well-being and that any recourse to physical force which has not been made strictly necessary by the applicants' own conduct diminishes human dignity and in principle constitutes a violation of the right enshrined in Article 3 of the Convention (see *Sheydayev v. Russia*, no. 65859/01, § 59, 7 December 2006). The burden of proof rests on the Government to show that the use of force, which resulted in the applicants' injuries, was not excessive (see, for example, *Dzwonkowski v. Poland*, no. 46702/99, § 51, 12 April 2007, and compare with *Kursish and Others v. Russia* [Committee], nos. 62003/08 and 5 others, § 84, 5 July 2022).

9. Furthermore, in the cases of *Lyapin v. Russia,* no. 46956/09, §§ 128-40, 24 July 2014, and *Samesov v. Russia,* no. 57269/14, §§ 54-63, 20 November 2018, as well as in *Kuchta and Mętel v. Poland*, no. 76813/16, § 88, 2 September 2021, the Court has already found, in particular, that the authorities' refusal to open a fully-fledged criminal investigation into the credible allegations of ill-treatment, as well as the lack of assessment of the necessity and proportionality of the use of lawful force by the police were indicative of the State's failure to fulfil its procedural obligation under Article 3 of the Convention. This is all the more so in cases where the authorities have refused to either carry-out an official inquiry into the applicants' allegations or officially register the applicants' complaints (see the appended table).

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion on the admissibility and merits of these complaints. The Court therefore finds these complaints admissible and decides that there has been a violation of the substantive and procedural limbs of Article 3 of the Convention in respect of all the applicants.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

11. Some applicants submitted other complaints which also raised issues under the Convention, in the light of the well-established case-law of the Court (see the attached table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its findings in *Tomov and Others v. Russia*, nos. 18255/10 and 5 others, 9 April 2019; *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014; *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013; *Novikova and Others v. Russia*, nos. 25501/07 and 4 others, §§ 106-225, 26 April 2016; *Ksenz and Others v. Russia*, nos. 45044/06 and 5 others, §§ 111-12, 12 December 2017, *Karelin v. Russia*, no. 926/08, 20 September 2016; *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018; *Fortalnov and Others v. Russia*, nos. 7077/06 and 12 others, §§ 76-79, 26 June 2018; and *Zakharov and Varzhabetyan v. Russia*, nos. 35880/14 and 75926/17, §§ 74-76, 13 October 2020.

V. REMAINING COMPLAINTS

12. The applicants also submitted additional complaints under Articles 6, 10 and 13 of the Convention. Having examined all the material before it, the Court concludes that it has already determined the main legal issues in the present applications (see paragraphs 10 and 11 above) and that accordingly there is no need to examine these complaints separately (see *Centre for Legal Resources on behalf of Valentin Câmpeanu v. Romania* [GC], no. 47848/08, ECHR 2014; *Aleksandr Andreyev v. Russia*, no. 2281/06, § 71, 23 February 2016; and *Leonid Petrov v. Russia*, no. 52783/08, § 86, 11 October 2016).

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

13. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

14. Having regard to the documents in its possession and to its case-law (see *Ksenz and Others*, cited above, § 120; and, for similar situations, *Zagaynov and Others v. Russia* [Committee], nos. 5666/07 and 4 others, 15 June 2021; and *Dauberkov and Others v. Russia* [Committee],

nos. 60844/11 and 2 others, § 64, 22 March 2022), and making its assessment on an equitable basis (see *Bouyid*, cited above, § 138), the Court considers it appropriate to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with the applicant's complaints as they relate to facts that took place before 16 September 2022;

3. *Declares* the applicants' complaints about torture or inhuman and degrading treatment at the hands of State officials, and other complaints raised under the well-established case-law of the Court (see appended table) admissible, and *finds* that it is not necessary to examine separately the applicants' remaining complaints;

4. *Holds* that there has been a breach of both the substantive and procedural limbs of Article 3 of the Convention concerning the torture or inhuman or degrading treatment in respect of the applicants;

5. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 5 October 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina Acting Deputy Registrar	María Elósegui President

APPENDIX

List of applications raising complaints under Article 3 of the Convention (torture or inhuman or degrading treatment)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Factual information	Medical evidence of ill-treatment	Date of first complaint Decision issued in response to complaint of ill-treatment	Decision under Article 125 of the CCrP Appeal decision	Information relating to conviction	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	60851/12 08/10/2012	**Turana Apkarovna VARZHABETYAN** 1945	Laptev Aleksey Nikolayevich Moscow	On 26/03/2017 the applicant (72 years old at the time) held a solo picket in Moscow against corruption and wars in Ukraine and Syria. Officers of the Tekstilshchiki police department in Moscow forcefully placed the applicant's hands behind her back and dragged her to a police van. A police officer punched the applicant in the chest.	Medical examination act of 26/03/2017 by Moscow Hospital no. 13: injuries of the right shoulder. The applicant was hospitalised between 26/03/2017 and 03/04/2017.	On 27/03/2017 complaint to the Moscow police / On 01/02/2018 letter from the First Operational police department of Moscow informing the applicant that her allegations were found to be unsubstantiated. No inquiry was carried out.	The applicant challenged the authorities' inaction, including their failure to issue an official refusal to open a criminal case. On 06/08/2018 the Tverskoy District Court of Moscow refused to examine the complaint for the lack of subject matter for the judicial review given the absence of a procedural decision. On 03/12/2018 the Moscow City Court upheld that decision.	The applicant was convicted under article 20.2 § 5 of CAO for a solo-picket and fined RUB 10,000. Final decision: on 20/06/2018, by the Moscow City Court.	Art. 5 (1) - unlawful deprivation of liberty - unlawful detention beyond the statutory 3-hour limit (i) on 17/05/2012 between 7.30 p.m. and 11.15 p.m.; and (ii) on 26/03/2017 between 4.30 p.m. and 8 p.m. (raised on appeal), Art. 10 (1) - disproportionate measures against solo demonstrators - Solo demonstration discontinued, escorting, administrative arrest on 26/03/2017, administrative sanction (fine of RUB 10,000, Article 20.2 § 5, final decision: 20/06/2018, Moscow City Court),	26,000

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									Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - proceedings in respect of solo-demonstration on 26/03/2017, administrative fine of RUB, 10,000; Final decision on 20/06/2018, by the Moscow City Court; Art. 3 - inadequate conditions of detention during transport - van on 26/03/2017 for three hours, overcrowding, 0.2 sq. m of personal space, Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - Gathering for the Protection of the Khimki Forest, Moscow, 17/05/2012, article 19.3 § 1 of CAO, administrative fine of RUB 500, decision	

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									on 12/07/2012, by the Presnenskiy District Court of Moscow.	
2.	55275/16 12/09/2016	**Pavel Pavlovich NIKULIN** 1989	Sharapov Ilnur Ilgizovich Moscow	On 04/03/2012 the applicant, a journalist, participated in a meeting in Moscow against results of the Presidential elections, during which the police twisted his arms with excessive force and dragged him to a police bus to be taken to the Yakimanka police station, where they drew-up a report of an administrative-offence of the applicant's participation in an unauthorised manifestation. The applicant was detained at the station for about three hours between 9 p.m. on 04/03/2012 and 12 a.m. on 05/03/2012.	Medical certificate no. 48 on 06/03/2012 by Pirogov Clinical Hospital no. 1: abrasion of the right brow, abrasions and bruises of the upper extremities, contusion of the coccyx.	On 11/03/2012 complaint to the Moscow investigative committee / Between 09/04/2012 and 22/07/2014 twelve refusals to open a criminal case, each overruled by the investigators' superiors for failure to take necessary steps.	On 1 March 2016 the applicant contested the authorities' failure to effectively investigate his ill-treatment before the Tverskoy District Court/ On 03/03/2016 the court dismissed the complaint for the lack of subject matter / On 06/06/2016 the Moscow City Court upheld that decision on appeal.	On 04/04/2012 the Tverskoy District Court discontinued the proceedings against the applicant under Art. 20.2 of the CAO.		16,000

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3.	25536/18 04/04/2018	**Irina Leonidovna KALMYKOVA** 1960 **Yekaterina Anatolyevna MALDON** 1972	Zboroshenko Nikolay Sergeyevich Mytishchi	On 12/08/2014 the applicants participated in a manifestation in support of Ukraine, when, at about 9.30 p.m. they were detained by the police. Police officers twisted the second applicant's arms and subjected her to a chokehold and then took both applicants to the Presnenskiy District police station. There an ambulance was called for the second applicant. Early in the morning on 13/08/2014 both applicants were subjected to beatings to pressure them to give evidence. In the evening on 13/08/2014 the applicants were taken to the Tsentralniy District Court in Moscow, where an ambulance	The first applicant: medical certificate of 13/08/2014 by Trauma unit no. 42 in Moscow: soft tissue contusions on the right shoulder, forearm, knee joint, left shoulder, abrasions of the left forearm and right ankle. The second applicant: (i) medical certificate of 12/08/2014 by Trauma unit no. 42 in Moscow: ligament damage of the right shoulder joint, soft tissue contusion on the right side; (ii) medical certificate of 13/08/2014 by Trauma unit no. 42 in Moscow: concussion of the brain, damage to the cervical spine, closed craniocerebral trauma, contusions, bruises to the face and	On 26/08/2014 and on 02/09/2014 the second and first applicants respectively complained to the Moscow investigative committee/ On 20/12/2014 refusal to open a criminal case for the lack of corpus delicti/On 02/05/2015 the refusal overruled by the investigators' superiors/On 24/05/2015 new refusal to open a criminal case, overruled and on 20/10/2017 the last refusal to open a criminal case was issued.	On 05/09/2017 the applicants contested the authorities' inaction in the investigation of their ill-treatment before the Presnenskiy District Court, which on 27/09/2017 examined the complaint and dismissed it as unsubstantiated / On 12/12/2017 the Moscow City Court upheld that decision on appeal / On 22/12/2017 the Presnenskiy District Court examined and rejected the applicants' appeal against the refusal of 20/10/2017 as unsubstantiated / On 26/02/2018 the Moscow City Court upheld that decision on appeal.			26,000, to the first applicant, and 52,000 to the second applicant

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				was called and both applicants were taken to the trauma unit of the Tsentralniy District in Moscow. As a result, the second applicant was hospitalised to neurological department of the Botkin Hospital until 15/08/2014 and then released, whereas the first applicant was released on 14/08/2014.	head, fracture of the nose bones without displacement; (iii) statement of 14/08/2014 by the Botkin hospital certifying that the second applicant was undergoing inpatient treatment for the injuries described above.					
4.	48811/18 05/10/2018	**Golt Viktorovich REVAN** 1997		On 27/07/2019 the applicant participated in a demonstration for fair elections to Moscow Duma, during which he was hit by the police several times.	Medical certificate no. 14578 of 28/07/2019 by trauma unit no.1 of the Eramishantsev Hospital in Moscow: injury of the soft tissue of the head, hematomas on the head and both elbow joints.	On 05/08/2019 complaint to the Tverskoy District investigative committee / On 19/09/2019 the latter informed the applicant by a letter that his complaint did not disclose any violation of his rights and the use	On 18/12/2019 to the Tverskoy District Court in Moscow rejected the applicant's complaint about the authorities' failure to open an inquiry into his ill-treatment, as unsubstantiated /On 17/02/2020 the Moscow City Court upheld that decision on appeal.		Art. 5 (1) - unlawful deprivation of liberty - the applicant was taken to a police station as an administrative suspect on 12/06/2017 and on 10/03/2019: there is no evidence/assessment that it was impossible to draw up an offence record on the spot;	6,500

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						of force against him had been justified, no inquiry was carried out/No further information was given.			Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - under Article 20.2 para. 5 of CAO (both sets of proceedings): final decisions: 1) Moscow City Court on 06/04/2018, and 2) Moscow City Court on 26/06/2019; Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies – 1) the applicant was found guilty of taking part in an unauthorised anti-corruption demonstration in Moscow on 12/06/2017; convicted under Article 20.2 para. 5 of CAO and fined RUB 10,000; final decision by the Moscow City Court on 06/04/2018; 2) the applicant was found guilty of taking part in an	

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									unauthorised opposition demonstration in Moscow on 10/03/2019; convicted under Article 20.2 para. 5 of CAO and fined RUB 10,000; final decision by the Moscow City Court on 26/06/2019 (complaint lodged on 09/10/2019).	
5.	5209/19 11/01/2019	**Vladimir Aleksandrovich FEDOROV** 1987	Brester Viktoriya Yevgenyevna Krasnoyarsk	On 05/05/2018 the applicant participated in an anticorruption manifestation in Krasnoyarsk. Police officers twisted his arms behind his back and shoved him to the ground. The applicant fell face down on the ground. The incident was filmed on camera. Then he was taken to police station no. 10 in Krasnoyarsk and released after an administrative offence report was drawn up.	Certificate of 05/05/2018 by the Karpovich hospital of emergency care in Krasnoyarsk: closed craniocerebral injury, concussion of the brain, contusion of the left knee joint.	On 05/05/2018 the hospital informed the police about the applicant's injuries/ On 17/05/2018 an inquiry was initiated by the Zheleznodorozhniy District investigative department / On 27/06/2018 refusal to open a criminal case was issued as no physical force had been used against the applicant/ the refusal was	On 21/11/2018 the applicant appealed against the first refusal to the Zheleznodorozhniy District Court/on 05/12/2018 the court refused to examine the complaint as the impugned decision had already been overruled/ On 29/04/2019 the applicant contested the second refusal before the same court/On 13/06/2019 the court dismissed the complaint as unsubstantiated / On	On 19/06/2019 the applicant was convicted of the participation in an unauthorised meeting under Art. 20.2 (6) of the CAO.	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - the applicant was found guilty of taking part in the unauthorised anticorruption manifestation in Krasnoyarsk on 05/05/2018; convicted under Article 20.2 para. 5 of CAO and sentenced to community service of 35 hours; final decision of the Krasnoyarsk Regional Court on 26/07/2018; Art. 5 (1) - unlawful deprivation of liberty - The	16,000

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						overruled on 05/12/2018 by the investigators' superiors / On 09/01/2019 new refusal to open a criminal case was issued.	15/08/2019 the Krasnoyarsk Regional Court upheld that decision on appeal.		applicant complained of having been taken to a police station as an administrative suspect on 05/05/2018: there is no evidence / assessment that it was impossible to draw up an offence record on the spot (Article 27.2 § 1 of the CAO) and to achieve the goals set by Art. 27.1 of CAO, e.g., to identify the suspect, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision of the Krasnoyarsk Regional Court on 26/07/2018,	
6.	14605/20 07/03/2020	**Dmitriy Yuryevich KARASEV** 1995	Zboroshenko Nikolay Sergeyevich Mytishchi	On 05/05/2018 the applicant participated in manifestation "He is not the Tsar to us", during which police	Medical certificate no. 1262 of 05/05/2018 by the Shchekinskaya Hospital in Tula:	On 18/06/2018 complaint with the Tverskoy District investigative department / No	On several occasions the applicant challenged the authorities' inaction in respect of his			16,000

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				officers hit him with truncheons, making him fall. An officer stepped on his arm and another one then used a special painful hold on him and dragged him to a police bus to be taken to a police station.	abrasions of the left elbow, contusions of both shoulder-joints and abrasions on both legs.	reply followed despite repeated requests for information.	ill-treatment before the Tverskoy District Court in Moscow, but to no avail as the court consistently refused to examine it for the lack of the subject-matter: no procedural decisions on the complaint had been taken. The last attempt - on 12/07/2019 the court examined the complaint and rejected it as unsubstantiated as the outcome of the examination of the ill-treatment complaint was not yet known /On 23/09/2019 the Moscow City Court upheld the decision on appeal.			
7.	21100/20 28/04/2020	**Konstantin Aleksandrovich KONOVALOV** 1989	Sirosh Fedor Yevgenyevich Moscow	On 27/07/2019 when the applicant was jogging by the site of a demonstration for fair elections to Moscow Duma, several police	Medical examination act of 27/07/2019 by Moscow hospital no. 67: injuries on the right knee, fracture of	On 05/08/2019 complaint to the head of the Russia investigative committee / letter of 07/08/2019	On 30/08/2019 the Tverskoy District Court of Moscow dismissed the appeal against the refusal to register the	The applicant was convicted under article 20.2 § 5 of CAO and fined RUB 10,000/Final decision on	Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - the applicant was convicted for	26,000

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				officers knocked him down, pinned him to the ground, twisted his arms and jumped on his legs. Then they took the applicant to the Airport police station in Moscow.	the tibia of the right leg.	with refusal to register the complaint as no indication of criminal actions by the police officers had been detected - the use of force against the applicant was justified.	ill-treatment complaint for the lack of the subject-matter: the applicant's complaint had not been registered by the law-enforcement authorities and no decision refusing to open a criminal case had been taken / On 18/11/2019 the Moscow City Court upheld it on appeal.	08/06/2020 by Moscow City Court.	participation in the unauthorised demonstration on 27/07/2019; interference with the applicant's freedom of assembly was not "necessary in a democratic society" (see Frumkin v. Russia, no. 74568/12, ECHR 2016 (extracts), Navalnyy and Yashin v. Russia, no. 76204/11, 4 December 2014 and Kasparov and Others v. Russia, no. 21613/07, 3 October 2013), Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings – final decision on 08/06/2020 by the Moscow City Court, Art. 5 (1) - unlawful deprivation of liberty – on 27/07/2019 the applicant	

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									was taken to a police station as an administrative suspect: there is no evidence/assessment that it was impossible to draw up an offence record on the spot (Article 27.2 § 1 of the CAO) and to achieve the goals set by Art. 27.1 of CAO, e.g., to identify the suspect. The applicant remained in detention for more than three hours after the offence record was drawn up without any justification (Tsvetkova and Others v. Russia, nos. 54381/08 and 5 others, §§ 121-22, 10 April 2018): he was arrested at 11.18 a.m. and released at 3.55 p.m.	
8.	3011/22 20/12/2021	**Stanislav Olegovich MILYAKOV** 1996		On 23/01/2021 the applicant participated in a demonstration in support of A. Navalnyy in Moscow during which police officers hit him	Ambulance call sheet no. 113740293 of 23/01/2021 by the Puchkov Emergency Care Station: swelling of the right ear with a wound with moderate	On 28/01/2021 the applicant's representative complained to the Moscow investigative committee / On	The applicant contested the investigators' inaction before the Presnenskiy District Court in Moscow, which on 21/06/2021 dismissed		Art. 11 (2) - disproportionate measures against organisers and participants of public assemblies - the applicant was found guilty of taking part in the demonstration in	16,000

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				on the head and torso with truncheons, pulled his ear and carried him to a police bus to be taken to the Altufyevo district police station. There an ambulance was called for him and administered first aid. In the evening the applicant was released.	bleeding, abrasion of the lower left tibia without ongoing bleeding. Medical certificate no. 025601 of 23/01/2021 by trauma unit no. 6: contusion to the auricle, contusion and saddling of the right shin and sprain of the right ankle joint.	18/02/2021 complaint forwarded to the Tverskoy investigative committee/On 24/05/2021 the latter informed the applicant by a letter that as no physical force had been used against the applicant, no inquiry into his allegaitons would be carried out / On 24/05/2021 the applicant complained about the lack of inquiry to the Moscow Prosecutor/ On 07/06/2021 the latter refused to examine the complaint.	the complaint for the lack of subject matter as no procedural decision had been taken / This decision was upheld on appeal by the Moscow City Court on 25/08/2021.		support of A. Navalnyy in Moscow on 23/01/2021; convicted under Article 20.2 para. 5 of CAO and fined RUB 10,000; final decision Moscow City Court 21/06/2021, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - final decision Moscow City Court 21/06/2021, Art. 5 (1) - unlawful deprivation of liberty - The applicant was taken to a police station as an administrative suspect on 23/01/2021: there is no evidence / assessment that it was impossible to draw up an offence record on the spot (Article 27.2 § 1 of the CAO) and to achieve the goals set by Art. 27.1	

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									of CAO, e.g., to identify the suspect.	
9.	3710/22 12/01/2022	**Denis Vladimirovich PAKHNOV** 1998	Zadorozhnaya Mariya Aleksandrovna Nizhniy Novgorod	On 31/01/2021 the applicant participated in a demonstration in support of A. Navalnyy in Moscow, during which two police officers twisted his arms and pushed him. The applicant fell and hit his right knee. He was then taken to the Marfino police station where an ambulance was called for him and an administrative-offence report was drawn up. Shortly thereafter the applicant was taken to the Ostankinskiy District Court which convicted him of participation in an unauthorised manifestation and released him.	Medical statement no. 6188/21 of 31/01/2021 by the Sklifosovskiy Institute of Emergency Care in Moscow: sprain of the ligament of the right knee joint. Expert from medical file no. 1224/184 of 08/02/2021 by the Balashikha Regional Hospital: rupture of the internal meniscus of the right knee joint. The applicant was hospitalised between 02/02/2021 and 08/02/2021.	On 02/04/2021 the applicant's representative complained to the Moscow investigative committee / No reply followed other than information that the complaint had been forwarded to the Russian Guards Service for an examination.	On 19/05/2021 the applicant contested the investigators' inaction before the Presnenskiy District Court of Moscow, which on 02/06/2021 dismissed the complaint for the lack of subject matter / This decision was upheld on appeal by the Moscow City Court on 03/12/2021.	On 31/01/2021 the Ostankinskiy District Court in Moscow convicted the applicant of participation in an unauthorised manifestation, under Art. 20.2 (6) of the CAO, and fined him RUB 10,000. On 13/07/2021 the Moscow City Court upheld that decision.	Art. 5 (1) – unlawful deprivation of liberty – on 31/01/2021 the applicant was taken to a police station as an administrative suspect: there is no evidence/assessment that it was impossible to draw up an offence record on the spot (Article 27.2 § 1 of the CAO) and to achieve the goals set by Art. 27.1 of CAO, e.g., to identify the suspect. The applicant remained in detention for more than three hours after the offence record was drawn up without any justification: he was arrested at 12.30 a.m. and released at 1.40 p.m. Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence	16,000

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									proceedings - final decision Moscow City Court 13/07/2021.	
10.	4793/22 28/12/2021	**Iskander Muzaffarovich TAGAYEV** 1999	Lepekhin Andrey Gennadyevich Chelyabinsk	On 05/05/2018 the applicant participated in a demonstration in support of A. Navalnyy in Chelyabinsk, during which he was detained by two police officers who twisted his arms, punched him in the chest and kicked him in the back.	Medical certificate no. 4862627595 of 05/05/2018 by Chelyabinsk clinic no.3: injuries of the chest and lower back.	On 07/05/2018 complaint to the Chelyabinsk investigative committee / On 22/08/2018, 27/04/2019, 05/09/2019, 03/10/2019 and 14/10/2020 refusals to open a criminal case. All, expect for the last refusal of 14/10/2020, were overruled by the investigators' superiors.	The applicant appealed against each refusal to open a criminal case to the Tsentralniy District Court in Chelyabinsk. Shortly before the date of the hearing, each of the impugned refusals had been overruled by the investigators' superiors and the court refused to examine the matter / On 02/03/2021 the applicant appealed against the last refusal of 14/10/2021 / On 11/06/2021 the court rejected it as unsubstantiated/On 14/09/2021 the Chelyabinsk Regional Court upheld that decision on appeal.	On 28/06/2018 the Tsentralniy District Court in Chelyabinsk found the applicant guilty under Article 220 (2).5 of the CAO and fined him RUB 5,000/On 01/08/2018 the Chelyabinsk Regional Court quashed that decision on appeal and terminated the proceedings for the lack of evidence.		6,500

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11.	15415/22 25/02/2022	**Mariya Vladislavovna ISAYEVA** 1996	Valiyeva Elza Albertovna Nizhniy Novgorod	On 23/01/2021 the applicant participated in a demonstration in Moscow in support of A. Navalnyy during which a policeman hit her on the head and the upper part of her body with a truncheon.	Certificate no. 113738519 of 23/01/2021 by Moscow Emergency Care Station no. 9: compound injury and hematoma of the parietal region, injury of the soft tissue of the right forearm. Certificate of 23/01/2021 by the Botkin State Clinical Hospital: compound injury and hematoma of the parietal region, injury of the soft tissue of the right forearm.	On 28/01/2021 complaint to the Moscow investigative committee / On 02/02/2021 it was transferred to the Tverskoy District investigative committee and from there on 09/04/2021 to the Russian Guards Service / On 20/05/2021 the latter informed the applicant by a letter that their agents had not violated the applicant's rights. No inquiry was carried out and no further information given.	On 22/05/2021 the applicant contested investigator's inaction before the Presnenskiy District Court of Moscow, which on 22/06/2021 dismissed the complaint as unsubstantiated / This decision was upheld on appeal by the Moscow City Court on 30/08/2021.			16,000
12.	22324/22 13/04/2022	**Timofey Kirillovich SOKOLOV** 2003	Zadorozhnaya Mariya Aleksandrovna Nizhniy Novgorod	On 31/01/2021 the applicant, who was 17 years old at the time, participated in a	Excerpt from medical file no. 4448-21 of 04/02/2021 by the St Vladimir Children	On 31/01/2021 the applicant's mother complained about the ill-treatment to	On 17/06/2021 the applicant contested the investigators' inaction before the Presnenskiy	The administrative case against the applicant was		16,000

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				demonstration in support of A. Navalnyy in Moscow, during which three police officers hit him in the back with truncheons. The incident was filmed on camera. Then the officers took the applicant to a police station where an administrative-offence report under Art. 20.2 (6.1) of the CAO was drawn up and the applicant was released.	Hospital: the applicant underwent hospitalisation between 1 and 04/02//2021 with the diagnosis of contusion of the lower back to the left. Expert conclusion no. 397/2021 of 06/07/2021 by the Krasnodar Medical Forensic Centre: contusion of the lower back could have occurred under the circumstances as alleged by the applicant.	the Moscow investigative committee / The complaint was forwarded from one law-enforcement agency to another one and no pertinent information was given to the applicant despite his requests to this end / On 02/12/2021 the applicant was informed by a letter of the Moscow police that their officers had not violated his rights and therefore any correspondence with him on the matter should cease / On 24/01/2022 the applicant was	District Court of Moscow, which on 27/07/2021 dismissed it as unsubstantiated as the complaint was still pending before the law-enforcement bodies / This decision was upheld on appeal by the Moscow City Court on 13/10/2021.	dismissed on the 14/07/2021 by the Lefortovskiy District Court in Moscow for the lack of evidence.		

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						informed by a letter from the Moscow investigative committee that his ill-treatment complaint had never been registered with law-enforcement authorities.				
13.	24584/22 19/04/2022	**Aleksandr Aleksandrovich SHEPELEV** 1996	Nurgaleyev Danil Ilnurovich Kazan	On 21/04/2021, shortly before a manifestation in support of A. Navalnyy, the applicant, who was his active supporter, was at home, when a group of policemen from police station no. 2 in Lubertsy in the Moscow Region arrived at his flat to carry out a search. They subjected the applicant to punches in the groin area, in the ribs and stepped on his	Medical certificate no. 4226 of the Trauma Unit of the Lubertsy Regional Hospital dated 21/04/2021: subcutaneous haemorrhage of the left eyebrow, right shoulder joint, scapular area on both sides, left thorax, soft tissue contusion of the left chest and left hip.	On 27/04/2021 complaint to the Lubertsy investigative department/On 25/09/2021 refusal to open a criminal case, which was subsequently overruled by the investigators' superiors as unlawful/On 25/11/2021 another refusal to open a criminal case, also	The applicant's appeals against each refusal before the Lubertsy Town Court and then before the Moscow City Court were to no avail as on the dates of the hearing the impugned decisions were overruled. On 17/12/2021 the Lubertsy Town Court rejected the appeal against the refusal of 25/11/2021/On 01/02/2022 the			16,000

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				head when he fell on the floor. In the evening on that day the applicant was taken to the Lubertsy Regional Hospital. Then he was brought to the police station, where he was detained until the morning on 22/04/2021.		overruled on 17/12/2021/On 09/02/2022 another refusal to open a criminal case; no further information was given.	Moscow City Court upheld it on appeal.			
14.	24710/22 06/08/2021	**Ivan Dmitriyevich KLEYMENOV** 1991	Memorial Human Rights Centre Moscow	On 31/01/2021 the applicant, a photojournalist, was taking pictures of manifestation participants in support of A. Navalnyy from a balcony, when several police officers walked up to him and subjected him to beatings. Then they took him to the Yuzhnoye Medvedkovo police station and drew up a report of an administrative offence	Medical certificate of 31/01/2021 by the Puchkov Emergency Care Station: contusion to the frontal area, left temporal haematoma, contusion to the right ankle joint. Hospitalisation record no. 113880746 of 31/01/2021 by the Botkin Hospital in Moscow: contusion to the frontal area, left temporal haematoma, contusion to the right ankle joint.	On 31/01/2021 complaint to the Yuzhnoye Medvedkovo police station/ On 11/02/2021 the police informed the applicant that the complaint had been forwarded to the Moscow police internal investigations unit and on 10/03/2021 to the Moscow investigative committee/ No other information	The applicant contested the investigators' inaction before the Presnenskiy District Court in Moscow, which on 26/01/2022 allowed the complaint /That decision was not complied with by the law-enforcement authorities, no inquiry carried out to date.	On 01/02/2021 the Babushkinskiy District Court in Moscow convicted the applicant of participation in an unauthorised manifestation, under Art. 20.2 (6) of the CAO and sanctioned him to 10-days' administrative detention. Final decision by the Moscow City	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - Final decision by the Moscow City Court on 10/02/2021	16,000

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				of participation in an unauthorised manifestation. An ambulance was called for the applicant, which took him to the Botkin Hospital in Moscow. The applicant was detained at the station for 19 hours without either food or drink or contact with family members.	Examinations by a neurosurgeon and a trauma surgeon on 31/01/2021 at the Botkin Hospital: contusion to the frontal area, left temporal haematoma, contusion to the right ankle joint.	given / No inquiry carried out to date.		Court on 10/02/2021.		
15.	31735/22 15/06/2022	**Daniil Andreyevich OGRENICH** 1998	Sadovskaya Olga Aleksandrovna Nizhniy Novgorod	On 21/04/2021 the applicant participated in a demonstration in support of A. Navalnyy in St Petersburg during which he was detained by police officers, who twisted his arms and tased him twice. He was taken to police station no.39 in the Kolpinskiy district in St Petersburg, where an administrative	Excerpt from medical file no. 5755 of 23/04/2021 by the St Petersburg City Clinic no.11: electric burn of the stomach to the left, 1x2 cm.	On 30/04/2021 complaint to the Admiralteyskiy District department of the investigative committee / No reply followed.	On 12/08/2021 the applicant contested the authorities' inaction before the Oktyabrskiy District Court in St Petersburg/ On 05/10/2021 the court dismissed it on the grounds of the lack of the subject-matter: no procedural decisions on the complaint had been taken / On 15/02/2021 the St Peterburg City	No proceedings were brought against the applicant.		16,000

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				offence report under Art. 20.2.2 of the CAO was drawn up.			Court upheld that decision on appeal.			
16.	48128/22 01/10/2022	**Mikhail Aleksandrovich STRELKIN** 1989	Lapuzin Aleksey Sergeyevich Samara	On 06/03/2022 police officers of an unknown police department arrested the applicant during his anti-war solo picket in Samara. They dragged him to a police bus, where they pinned him down to the bus floor, hit and kicked him in the head and torso.	Certificate of 06/03/2022 by Samara Regional Hospital no. 1: soft tissue contusion of the head. Certificate of 07/03/2022 by private clinic "Nauka": closed brain injury, concussion.	Complaint to the Samara investigative committee on 14/03/2022/ on 22/03/2022 the complaint was forwarded to the internal security service of the Samara police. No pre-investigation inquiry conducted; no other information given to the applicant.	The applicant contested the authorities' failure to carry out an inquiry into his complaint / On 28/06/2022 the Leninskiy District Court in Samara dismissed the complaint for lack of elements of a criminal offence and therefore that it had been lawfully forwarded to a competent authority / On 30/08/2022 the Samara Regional Court upheld the decision on appeal.	The applicant was convicted of administrative offence of discreditation of the Russian Army under 20.3.3 § 1 of the CAO by the final decision of the Samara Regional Court on 30/06/2022	Art. 5 (1) - unlawful deprivation of liberty - unlawful detention – on 06/03/2022 from 3.00 p.m. to 9.00 p.m. for the sole purpose of drawing up the record of an administrative offence, Art. 10 (1) - disproportionate measures against solo demonstrators – on 06/03/2022 in Samara, a picket against the war in Ukraine. The applicant was convicted of administrative offence of discreditation of the Russian Army under 20.3.3 § 1 of the CAO by the final decision of the Samara Regional Court on 30/06/2022, Art. 11 (2) - disproportionate measures	16,000

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									against organisers and participants of public assemblies - Manifestation against the war in Ukraine, in Samara on 27/02/2022, article 20.2 § 5 of the CAO, fine of RUB 10,000, the final decision by the Samara Regional Court on 02/06/2022, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings - decisions of the Samara Regional Court on 30/06/2022 and the Samara Regional Court on 02/06/2022.	

[1] Plus any tax that may be chargeable to the applicants.